

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · Site Photographs, Maps, Recurring Calendar, and
Reservations

Filed January 7, 2026

The Piedmont Booksellers Guild submits the following Cedar Commons exhibit with its request for preliminary relief. The exhibit gathers site views, a location diagram, the Guild's recurring-event calendar, municipal reservation excerpts, and the two dispatch abstracts discussed in the supporting declarations. Each visual item is accompanied by a complete written description so that its relevant physical content can be located and understood from the text.

Omar Finch, the Guild's fair logistics organizer, supplied the photographs and diagram. He states that the descriptions identify camera direction, visible routes, temporary objects, and material limits of each view. Miriam Bellweather supplied the calendar and reservation communications maintained with the Guild's event records. The dispatch text was received from the City with its permit-history material. Neither Guild custodian claims that a photograph measures an entire day's traffic or that an empty-site view proves conditions during a fair.

The exhibit uses compass directions only to keep the descriptions consistent. Laurel Street is treated as the north boundary, Market Lane as the east boundary, the public library walk as the southwest approach, and the service entrance as the southeast access point. The diagram is relational rather than surveyed to scale. The exhibit depicts a familiar recurring layout; it does not claim a right to use that layout if construction, another approved reservation, weather, or a documented safety condition requires an adjustment.

Exhibit A — Empty-Site Photographs

Photograph A-1, view from the Laurel Street entrance toward the south. The foreground shows the paved entrance widening into the central walk. The fountain appears slightly left of center, with open lawn on both sides. The library approach enters from the right rear of the view. No tents, chairs, vehicles, or temporary signs are present. The service entrance is partly obscured by landscaping at the far-left edge. The photograph shows that the lawn offers substantial placement space, while the paved route narrows where the fountain and planting bed face one another. It does not show crowd behavior.

Photograph A-2, view west from Market Lane. The curb and loading edge occupy the foreground. Beyond them, a paved spur leads toward the central lawn. Two marked bus boarding areas are visible farther along the street, one before and one after the park frontage. The service entrance appears as a separate paved opening near the lower-left portion of the scene. A maintenance sign states that the opening must remain clear. Parked vehicles outside the Commons show the ordinary curb context but do not establish traffic volume at event hours.

Photograph A-3, view outward from the service entrance. The image looks toward Market Lane and captures the route a maintenance or emergency vehicle would use. A narrow segment between a low wall and the edge of the lawn is visible. Finch's caption notes that the Guild ordinarily marks this route before vendor setup. Because the photograph was taken without an event in progress, it cannot determine whether tables later shift or whether a responding vehicle could enter at every moment. It does identify the physical corridor referenced in the parties' declarations.

Exhibit B — Prior-Fair Views and Descriptive Captions

Photograph B-1, seller layout during a 2025 Guild fair, taken before public opening.

Temporary tables and canopies form two loose rows around the lawn perimeter. The center remains open. Boxes are stacked behind several tables, and no vendor vehicle remains on the grass. A taped line identifies the edge of the service route. The reading area consists of movable chairs facing a low rug and lectern. The view supports the organizer's description of a compact physical program but does not show the day's largest audience.

Photograph B-2, reading period from the library-walk side. Approximately three rows of chairs are occupied, with additional listeners standing along the outside edge. Other patrons continue browsing at seller tables in the background. The fountain path remains visible but is narrower where two standing listeners have paused. No barrier, confrontation, or emergency activity appears. The caption notes that people moved in and out throughout the session, so the image records one moment rather than a final attendance count.

Photograph B-3, transition after a presentation. Several people stand from chairs while others walk toward a signing table placed near the lawn perimeter. Two pedestrians approach from the opposite direction along the central walk. A volunteer wearing a Guild badge points toward the wider route around the fountain. Market Lane is visible beyond the signing table. The scene illustrates why a presentation ending can create a temporary movement pattern even at a peaceful fair. It also shows that relocating the signing point or posting direction signs could reduce overlap.

Photograph B-4, close of unloading. One van is stopped at the Market Lane curb and a vendor carries a carton toward the lawn. A cone marks the end of the unloading segment. The image does not show how long the van remained or whether another vehicle was delayed. It documents the curb relationship that City witnesses identify as a planning concern.

Exhibit C — Searchable Site Diagram and Route Key

The following key states the relative position of features shown in Finch's diagram. Laurel Street forms the northern edge. From west to east along that edge are a pedestrian entry, open lawn frontage, and the corner approaching Market Lane. Market Lane runs south along the eastern edge and contains the temporary unloading segment. The two bus boarding areas are outside the park boundary along that street. The library walk enters from the southwest and meets the central walk near the fountain. The service entrance reaches the park from the southeast.

The proposed seller area follows the north, west, and south lawn perimeter, leaving the middle lawn open. The proposed reading area sits south of the fountain and west of the service route. Movable chairs face away from Market Lane. A separate signing point is placed farther west so that a post-reading line need not occupy the service approach. The emergency corridor begins at Market Lane, passes through the service entrance, and continues beside the reading area toward the center of the Commons.

Diagram key: **N** is Laurel Street; **E** is Market Lane and unloading; **SW** is the public-library walk; **F** is the fountain; **R** is the reading area; **S** is the signing point; **V** is the perimeter vendor zone; and **EC** is the emergency corridor. Arrows on the diagram indicate expected pedestrian movement from the library walk around the fountain and from the reading area toward seller tables. A crosshatched area marks the narrow point where standing listeners could overlap with through movement.

Finch labels the drawing “not to scale” and leaves capacity, lane-width, and accessibility determinations to the responsible City officials. The diagram does not represent that the same arrangement is suitable on every date. Its evidentiary purpose is to show that the Guild can identify physical features, preserve a route, and modify chair or signing placement without changing an author's literary subject.

Exhibit D — 2026 Recurring-Fair Calendar

The Guild's calendar lists six free Saturday fairs proposed for Cedar Commons. It also calculates the forty-five-calendar-day filing point under the Paid-Speaker Permit Ordinance. The entries are:

Proposed event	Forty-five-day point	Guild planning notation
February 14, 2026	December 31, 2025	Winter layout; author invitations still developing at cutoff
April 11, 2026	February 25, 2026	Spring program; publisher travel not final
June 13, 2026	April 29, 2026	Summer layout and shade review anticipated
August 8, 2026	June 24, 2026	Heat plan and water access to be confirmed
October 10, 2026	August 26, 2026	Fall series; nearby activity to be checked
December 12, 2026	October 28, 2026	Winter hours and daylight plan to be updated

For every date, the Guild anticipates the historical range of eighteen to twenty-eight sellers and four to seven compensated authors, subject to availability. These are planning ranges, not promises that each event will have the maximum. Admission and the presentations remain free to attendees. The calendar identifies preliminary setup, public, and removal periods in the Guild's working files, but those hours remain subject to the application and any lawful site condition.

The February cutoff passed before all invitations were settled. Later cutoffs recur throughout the year, so the calendar depicts a repeating planning issue rather than only one expired opportunity. Bellweather's notation says the Guild can provide a site plan, attendance range, contact, unloading proposal, and presentation area before it can reliably identify every author. The calendar does not show that the City denied a date or a speaker, and it does not establish priority over another reservation.

Exhibit E — Reservation and Scheduling Excerpts

The Guild's recurring-use request identifies Cedar Commons as the desired site for all six 2026 Saturdays. The municipal response acknowledges receipt of the date list and explains that each date requires separate review. It states that materials may arrive in a combined packet for convenience, but neither a public announcement nor acknowledgement of the packet displaces a complete application already approved under neutral scheduling rules. The response requests date-specific hours, attendance, layout, loading, emergency contact, and the information required by Form PS-1.

A parks calendar excerpt places the Guild's requested dates in a “pending event review” field. That field is distinct from “approved reservation.” The excerpt lists no final denial and does not identify a competing approved use for the February date at the time the calendar was printed. A legend cautions that transportation work, departmental availability, construction, and later-filed complete applications may affect a pending request. Thus the excerpt supports the reality of the Guild's recurring plans but not an unconditional entitlement to the park.

An email excerpt from Bellweather asks whether an author who becomes available after a filing date may occupy an existing twenty-minute slot without changing chairs or expected attendance. The intake response says to submit the person's name, short topic, and time; staff will review the timing and operational effect but cannot promise approval in advance. Nothing in the exchange criticizes an author or subject. The communication also supplies no fixed response interval for a late request.

A second excerpt states that a withdrawn listed speaker and a substitute are not both charged when the operational plan remains substantially unchanged. An actually additional paid speaker requires the published \$45 amount. These reservation materials preserve the parties' disagreement: the City views separate decisions and change review as necessary, while the Guild says uncertainty before confirmation impairs invitations.

Exhibit F — Dispatch Abstracts and Custodian Statement

The first dispatch abstract concerns a Guild fair during warm weather. It records a call for an attendee reporting dizziness, arrival of medical personnel, access through the designated route, on-site evaluation, and clearance without evacuation. The abstract does not identify violence, a blocked response, or a causal relationship to any reading. It also does not state that no staff action was needed; the route was kept available while assistance occurred.

The second abstract concerns a reported fall near a curb on another fair date. It records a minor medical response and clearance without site closure. The narrative contains no arrest, fight, property damage, or reference to an author's topic. The precise mechanism of the fall is not established by the short dispatch entry. The exhibit therefore supports the existence of the call while leaving causation and significance open.

Related event notes mention temporary Market Lane delay during unloading, vendors asked to move material away from the service path, and short queues near the crosswalk after presentations. They do not contain continuous measurements or establish how often these conditions occurred. No supplied report attributes disorder to disagreement with literary content. The absence of such a report does not rule out preventive work or every unreported inconvenience.

Finch certifies that the photograph descriptions and route key accurately state what the supplied site views depict. Bellweather certifies that the calendar and correspondence excerpts were kept with the Guild's ordinary event files and that the proposed dates are February 14, April 11, June 13, August 8, October 10, and December 12, 2026. Both acknowledge that the City may possess additional scheduling information. Their certifications were executed January 7, 2026, in Norvale, South Carolina, under penalty of perjury.